

Subject: Civil rights violations by town entities

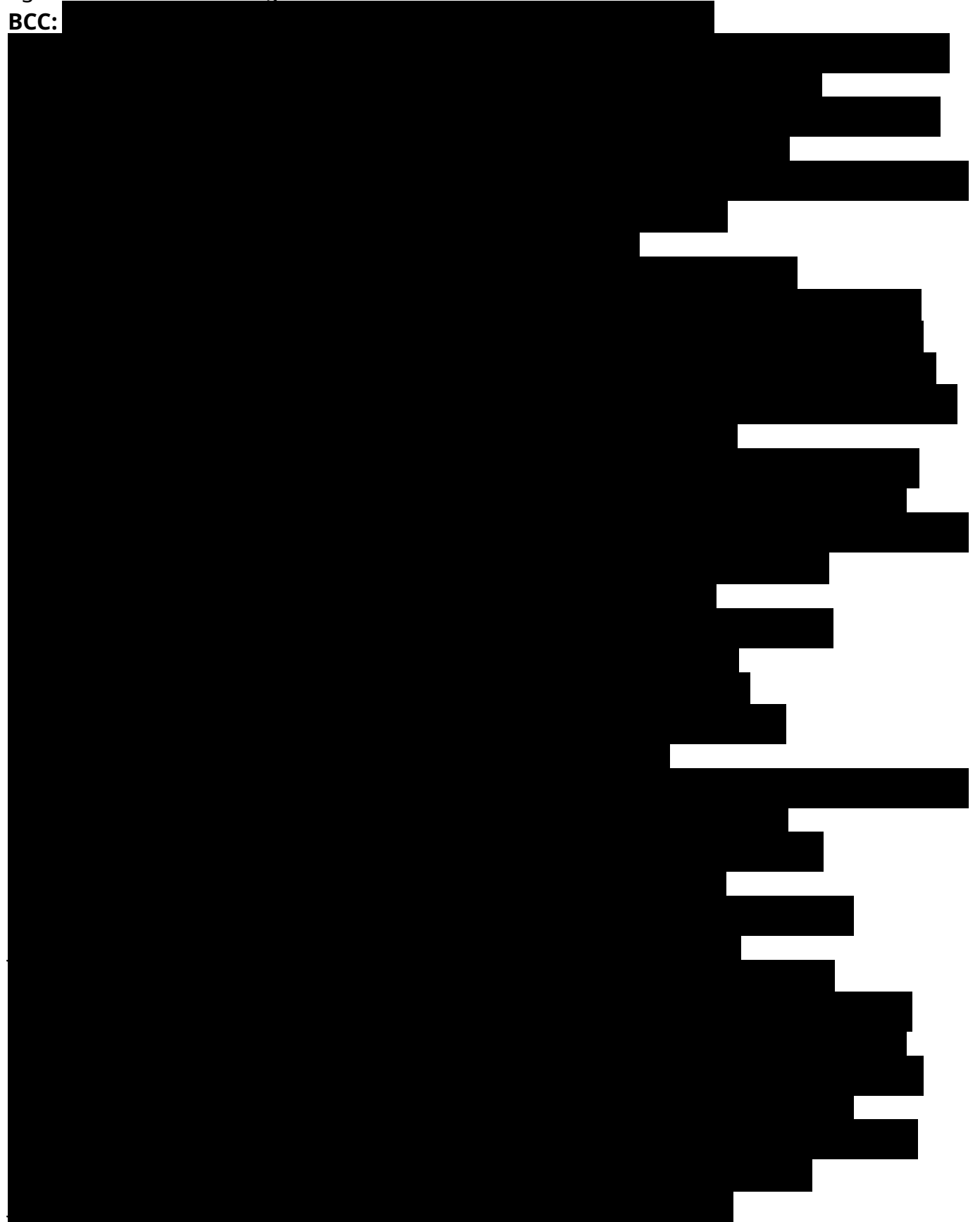
From: Stephen Harrington <sth.alist@gmail.com>

Date: 10/16/23, 16:13

To: Michael Cunningham <mcunningham@town.arlington.ma.us>

CC: Jim Feeney <JFeeney@town.arlington.ma.us>, Greg Christiana
<gchristiana@town.arlington.ma.us>

BCC:



[REDACTED]

[REDACTED]

Dear Town Counsel Michael Cunningham,

Thank you for our discussion today.

As we discussed, as Town counsel, you represent the Town of Arlington. Town counsel is appointed by the executive authority, the Select Board, and reports to the Town Manager, Jim Feeney, copied here.

While Town counsel also provides support for other Town bodies, these bodies also engage outside representation, on retainer as in the case of the School Committee, or on an as needed basis, such as the Redevelopment Board or the Town of Arlington itself. In addition, the Town has other staff which represents the Town's interests in labor negotiations and other matters. Town counsel is the sole legal representation for Town Meeting at this time.

We agreed, Town counsel does not represent the residents of Arlington directly; specifically Town counsel does not represent, in any legal sense, me personally. In any disagreement

between residents and any Town governmental entity or employee the Town counsel is obligated to represent the interests of the Town and not the interests of counter-parties in any legal proceeding. Nothing we discuss today is confidential or protected under attorney-client privilege.

We discussed the balance of limiting the Town of Arlington's liability when disagreements arise between the Town and any one else, including residents. Your understanding that limiting the Town's liability in any disagreement is always a goal for Town counsel is much appreciated.

We discussed the Town counsel's role in Town Meeting, touching upon the ability of residents to interact with that public body. Specifically:

1. The role of the Select Board, as the executive, in warrant articles submitted by citizens. In particular, the role of Town counsel, and the limit of Town counsel, of representing any petitioners or acting in the best interest of petitioners, in warrant articles. We agreed, in any disagreement between residents' interests and the Town's interests, Town counsel is obligated to act in the best interests of the Town. We discussed the "informal" requirement that all warrant articles are reviewed by Town counsel.

We both aspire to align those interests. I denigrated the idea that Town counsel could be an impartial advisor to residents, especially in regards to unpopular advocacy or efforts to limit the Select Board's authority or further encumber the Town through Town Meeting.

We discussed :

2. The role of the Select Board Administrator requiring (or not) watermarked forms for resident signatures on citizen proposed warrant articles. We discussed that any legible piece of paper that met state legal requirements received by the Board Administrator should be presented to the Registrar of Voters, who reports to the Town Clerk, to verify the signatures for inclusion into the warrant. We discussed whether state requirements require watermarked signature forms for local citizen warrant articles and whether such a requirement would create a barrier for petitioning Town Meeting. I referred you to the Town Clerk for a recent example of this.

We discussed:

3. The inalienable right to petition public bodies, including Town Meeting, through citizen warrant articles, pamphlets, demonstrations and peaceful, lawful protests on the steps of Town Hall and anywhere outside of the declared enclosure during official proceedings of Town Meeting.

I explained that in the past, a former Select Board chair declared their intention to require the Select Board's vote of no action on citizen warrant articles to be the final vote. I appreciate that you would require more facts before opining on such an action; let me know if you want the video recordings.

We discussed:

4. The history of the Town Meeting email list. I explained that the email list was started by one Town Meeting member, Rich Carriero, while John Leone (or maybe John Worden) was the Town Meeting Moderator. I discussed that the email list was informal and not created by any Town bylaw or MA state law. Rich acted as a social media moderator for submissions to his email list; although he seemed fair minded about it.

I discussed that in the past, pamphlets would be distributed to Town Meeting members by placing them on the seats before Town Meeting started. Further, I described my experience that the Town Manager's office had provided assistance in the form of free copies. This traditional form of pamphleteering was used widely by both Town entities, residents and anonymous persons.

I asked whether anyone would be allowed to place pamphlets on the seats of Town Meeting members before the start of Town Meeting. I asked that reports that the Town Meeting Moderator has recently banned this practice be disavowed.

We discussed:

5. We discussed that, at present, the Town Meeting email list is used for advocacy of warrant articles, to inform members and has become the official mechanism to distribute documents to Town Meeting. We discussed whether it was appropriate for an elected official to be the gatekeeper of the sole mechanism for communicating directly with a public body.

The still, not codified process for submitting documents to the Town Meeting email list has been changed a number of times in the past three years. Currently, the process promulgated by the Town Meeting Moderator requires voters, residents and others to have a co-author or sponsor who is a Town Meeting member. I explained, how in this particular instance, a local blogger with a history of harming the sponsor of my resolution, tried to dox their identity for publication.

We discussed:

6. I shared, copied below, that Greg Christiana, as Town Meeting Moderator, explained how he would decide whether advocacy to Town Meeting would be allowed based on content. Further, Christiana implies that authors, sponsors and others might be held accountable, presumably by Christiana, maybe through denying a TMM the ability to speak. I explained how this has had a chilling effect on multiple Town Meeting members and their willingness to sponsor controversial advocacy by residents. I explained how there were multiple examples of this, the first copied below.

Requests to distribute relevant materials to Town Meeting Members through the Town-managed Town Meeting Members Email List can be sent to me at gchristiana@town.arlington.ma.us. If I deem the material relevant and appropriate, I'll forward the request to staff who manage the email distribution list.

Requiring clearly marked authorship helps ensure accountability. There are plenty of forums for sharing material anonymously, but the Town Meeting Members Email List is not one of them.

7. I shared that Greg Christiana has displayed personal animus towards me on social media posts and that I would be happy to disclose these during any formal discovery process. I also shared how multiple Town Meeting members have threatened me for sending advocacy emails to publicly available email addresses supplied by the Town. I explained that Greg Christiana has denied every single advocacy petition from me over the past three Town Meetings while allowing other residents that "privilege".

8. I shared that the Town of Arlington has a history of violating the civil rights of residents with officials using the police to intimidate petitioners. I described the Select Board chair, during a public hearing for a warrant article that I submitted, make an unlawful demand, that a prior Town Manager, Adam Chapdelaine, defused simply, reducing the potential liability to the Town. I offered to share the video recording.

At the end, I explained that I only asked that the resolution in support or a fair and equal override vote scheduled for November 7 be distributed to Town Meeting members through the Town Meeting Email List. Of course, the resolution could not legally be included in this Special Town Meeting warrant, but the advocacy of such a simple, widely held resolution might inform Town Meeting members for the future. A future denied by an arbitrary process intended to strip the ability of residents from advocating with a public Town body.

I urge you, Michael, as Town counsel, to work with Greg Christiana to reduce the Town's liability and remove barriers for residents to petition Town Meeting to address their grievances. Further, this may seem like a small problem, but it is one that I intend to pursue until common sense relief is provided by the Town. The culture of officials denying the civil rights of residents is endemic in the Town of Arlington. It is only a matter of time, before such a culture results in serious damage both from monetary and reputation considerations.

Thanks again for the conversation.

Stephen Harrington
617-852-4939

BCC Town Meeting